

Court No. - 3

Case :- WRIT - C No. - 18056 of 2022

Petitioner :- M/S Raghav Cold Storage

Respondent :- Dakshinanchal Vidhyut Vitran Nigam Limited
And Another

Counsel for Petitioner :- Rajendra Kumar Mishra

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

1. Heard learned counsel for the petitioner and Shri Baleshwar Chaturvedi, learned counsel for the respondent no. 2.

2. This writ petition has been filed praying for the following reliefs :

"A- Issue a writ, order or direction in the nature of mandamus directing the respondent no.1 and 2 to consider and decide the representation dated-31.5.22 (Annexure no.13) given by the petitioner to the respondent and issue a revised bill to the petitioner granting 6 installment facility for payment of entire dues and thereby clearing all the arrears against the petitioner and granting permanent disconnection certificate the petitioner."

3. Learned counsel for the respondent no. 2/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed of** giving liberty to the petitioner to submit his objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent no.2 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 6.7.2022

A. V. Singh